

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-03

EUROMARKET DESIGNS, INC. v.

MSC MEDITERRANEAN SHIPPING COMPANY SA, OCEAN NETWORK EXPRESS PTE.
LTD., EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982), EVERGREEN
MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA
MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN MARINE
(SINGAPORE) PTE. LTD., HMM COMPANY LIMITED, MAERSK A/S, CMA CGM S.A.,
APEX MARITIME CO, INC., CHINA UNITED TRANSPORT, INC., COSCO SHIPPING
LINES CO., LTD., AND WAN HAI LINES LTD.

**COMPLAINANT EUROMARKET DESIGNS, INC.'S
MOTION FOR SUBSTITUTION OF PARTIES**

Complainant Euromarket Designs, Inc. (“Complainant” or “EDI”), by and through its undersigned counsel, hereby files this Motion for Substitution of Parties (“Motion”) pursuant to 46 C.F.R. Section 502.43, seeking an order substituting C.U. Lines Limited (“C.U. Lines”) in place of China United Transport, Inc. (“CU Transport”) as a respondent in the above-captioned proceeding. In support thereof, Complainant states as follows:

BACKGROUND

On December 31, 2024, Complainant initiated this proceeding by filing a Verified Complaint against multiple respondents, including an entity identified as “China United Transport, Inc.”

On February 25, 2025, counsel for CU Transport sent an email to EDI requesting to be removed from the case, stating that CU Transport and C.U. Lines Limited have no directors, officers, shareholders, and/or investors in common, and that confusion resulting from the similarity of the names C.U. Lines Limited and CU Transport has occurred in the past. CU Transport’s counsel also represented that CU Transport cannot find record of any shipments handled on behalf of EDI.

Based on these representations, EDI has reviewed applicable Commission registration lists and its Tolling Agreements with C.U. Lines Limited and determined that it inadvertently identified “China United Transport, Inc.”—an entity with an active registration with the Federal Maritime Commission—as a respondent instead of the correct entity: “C.U. Lines Limited”.

First, EDI and C.U. Lines Limited entered into a tolling agreement, as amended, beginning on August 2, 2024. That “Tolling Agreement”, as amended, was executed by Kaya Massey, Esq., an attorney with the law firm Jeffrey/Fenneman Law + Strategy, PLLC, and stated that it was between “Euromarket Designs, Inc. and (or on behalf of) its parents, subsidiaries, and

affiliates . . . on the one hand, and *C.U. Lines Limited and (or on behalf of) its parents, subsidiaries, affiliates, successors, principals, and agents*”. (emphasis added.)

Second, counsel for Complainant contacted C.U. Lines Limited’s counsel to inform them of the upcoming filing on December 30, 2024 and received an acknowledgment from counsel with the law firm Jeffrey/Fenneman Law + Strategy, PLLC.

Third, C.U. Lines Limited was repeatedly named throughout the Verified Complaint, confirming that it was the intended respondent. Complaint at ¶¶ 35, 51, 161-165. Complainant was also in communication with counsel for C.U. Lines Limited for *months* before filing the Verified Complaint.

Fourth, C.U. Lines Limited is the wholly owned subsidiary of China United Lines, Limited. In a recently filed FMC proceeding, *China United Lines, Ltd. v. Amazon.com Services LLC et al.*, FMC Docket No. 25-04, the verified complaint filed by China United Lines, Ltd. identifies C.U. Lines Limited, as the wholly-owned subsidiary of China United Lines, Limited, and the organization number used in the complaint to identify C.U. Lines Limited tracks to FMC Organization No. 029412, which belongs to C.U. Lines Limited on the FMC Inactive VOCC list.

Fifth, China United Transport, Inc.—the entity inadvertently named in the Verified Complaint—is an entity registered with the FMC that, based on its counsel’s representations, is not related to either China United Lines, Limited, or its child C.U. Lines Limited.

Sixth, the listed address for China United Lines, Limited in the *China United Lines, Ltd. v. Amazon.com Services LLC et al.* proceeding matches the address used for C.U. Lines Limited listed in the Verified Complaint in this proceeding brought by EDI: Building 12, Lane 706 Wuxing Street, Pudong District, Shanghai, China.

Seventh, the Verified Complaint in this proceeding case was served at the address of C.U. Lines Limited's parent company at the address: Building 12, Lane 706 Wuxing Street, Pudong District, Shanghai, China.

These facts confirm that C.U. Lines Limited is the correct respondent and that China United Lines, Ltd. is its parent company. After the communication from CU Transport's counsel, Complainant promptly contacted the Office of the Secretary on February 25, 2025, to clarify the issue.

On February 26, 2025, the Office of the Secretary informed EDI that that the Verified Complaint was indeed served, through the Secretary's process, at the address listed in Paragraph 35 of the Verified Complaint—Building 12, Lane 706 Wuxing Street, Pudong District, Shanghai, China—which corresponds to the business address of C.U. Lines Limited's parent company.

The undersigned counsel also contacted counsel for C.U. Lines Limited, with the law firm Jeffrey/Fenneman Law + Strategy, PLLC, to explain the issue and express a willingness to meet and confer and come to a jointly agreed proposal for substituting CU Transport with the proper party. C.U. Lines Limited's counsel responded first by stating that they did not represent either of the entities mentioned in undersigned's communication (CU Transport and China United Lines, Limited), even though a member of their law firm had previously signed a "Tolling Agreement by and between Euromarket Designs, Inc. and (or on behalf of) its parents, subsidiaries, and affiliates . . . on the one hand, and C.U. Lines Limited and (or on behalf of) its parents, subsidiaries, affiliates, successors, principals, and agents" and C.U. Lines Limited is China United Lines, Limited's wholly-owned subsidiary and their firm had thus signed a Tolling Agreement expressly on behalf of China United Lines, Limited. Upon further clarification that the intended respondent is their client—C.U. Lines Limited—counsel indicated that they would not confer with EDI's counsel

regarding substitution, stating: “We can’t respond on behalf of anyone, as we have never represented anyone named in the Complaint.”

The Presiding Officer should accordingly enter an order permitting the substitution of the proper party, C.U. Lines Limited, and dismiss CU Transport from this proceeding.

ARGUMENT

46 C.F.R. Section 502.43 provides that “[t]he Commission or presiding officer may order an appropriate substitution of parties in the event of a party’s death, incompetence, transfer of its interest, *or other appropriate circumstance.*” (emphasis added.)

In *Simple Forwarding, Inc. v. China United Lines Ltd.*, FMC Docket No. 2010(F), 2024 WL 4474512 (ALJ Oct. 4, 2024) (Order Regarding Claimant’s Motion for Leave to Amend Complaint and Request for Return to Informal Adjudication), Administrative Law Judge Richard Ambrow supported substitution under Section 502.43 in cases involving misidentified entities — exactly the situation presented here. In that case, the Administrative Law Judge (ALJ) permitted an amended complaint to clarify the identity of the respondent, specifically addressing confusion over a parent/subsidiary naming issue involving C.U. Lines Limited.

I will allow Claimant to amend the Complaint. As noted above, motion practice generally is not permitted in a proceeding under Subpart T. Nevertheless, an ALJ may require additional information from the parties under Subpart T, as well as substitute parties. Permitting the Amended Complaint would both provide more information about the claim, as well as clarify the identity of the Respondent CULines. Regarding the former, the Complaint contained relatively little information about Claimant’s claim... The Amended Complaint, which contains several exhibits, as well as more specific information about Claimant’s claim, may provide at least some of the information that an ALJ may otherwise require. Therefore, I permit the Amended Complaint to be filed because it may provide additional information to substantiate Claimant’s claim. *As noted, permitting the Amended Complaint also potentially more clearly identifies one of the Respondents. Respondent CULines argues that “CULines” is a non-existent entity*, thus legal entities China United Line Limited and C.U. Lines Limited have not properly been served. The Amended Complaint appears to be Claimant’s attempt to resolve the issue of whether the proper party is named by identifying the

Respondent as China United Lines LTD aka CULines. Under Subpart T, ***a presiding officer may order an appropriate substitution of parties under appropriate circumstances.*** (46 C.F.R. § 502.321(b) (incorporating 46 C.F.R. § 502.43 by reference)). Therefore, I also permit the Amended Complaint to be filed because it may resolve the issue of whether the Respondent is the proper party. Further, there are no grounds under the Federal Rules warranting denial of the proposed amendment.

Simple Forwarding, Inc., 2024 WL 4474512 at *3-4 (emphasis added).

In *Simple Forwarding*, the ALJ explained that a presiding officer may order an appropriate substitution of parties under Section 502.43 and applied the “other appropriate circumstance” provision of the rule to ***remedy misidentifications and clarify the identity of the respondent C.U. Lines Limited***, even when the misidentified party was originally served. The ruling recognized that confusion arising from corporate family naming conventions—such as those in this case which were compounded here by the fact that neither C.U. Lines Limited nor China United Lines, Limited are currently registered with the Commission—warrants substitution to reflect the correct respondent. The respondent in that case argued that the named entity did not exist, a contention similar to the one here, where CU Transport was mistakenly identified instead of C.U. Lines Limited.

Substituting C.U. Lines Limited in place of CU Transport will not prejudice any party and will prevent unnecessary motion practice and procedural delays while ensuring that the correct entity is held accountable under the Shipping Act. Indeed, (1) the Verified Complaint was served upon C.U. Lines Limited’s corporate parent, (2) counsel for Complainant informed counsel for C.U. Lines Limited that it would be filing the present complaint at the end of December 2024, and (3) *that same opposing counsel* has entered an appearance on behalf of Respondent Apex Maritime Co., Inc.—indicating that such counsel was *aware* of this proceeding and the inadvertent naming of CU Transport in place of C.U. Lines Limited for many weeks.

The requested substitution of parties will not prejudice C.U. Lines Limited. As indicated, C.U. Lines Limited:

- was served with the Verified Complaint at the *offices of its parent*,
- appears throughout the Verified Complaint,
- was the entity involved in the underlying transactions giving rise to this dispute,
- signed a tolling agreement concerning these transactions,
- had advance notice from Complainant's counsel that Complainant would be filing the Verified Complaint, and
- The attorney who agreed to the tolling agreements on behalf of C.U. Lines Limited also appeared on behalf of another respondent in this proceeding, demonstrating that C.U. Lines' counsel was aware of the Verified Complaint and of the claims against C.U. Lines Limited.

To eliminate any possible argument of prejudice, EDI consents to and is requesting a modification of the deadlines to grant C.U. Lines Limited a reasonable extension of time to file an Answer to the Verified Complaint and any pending motions. Therefore, because C.U. Lines Limited had actual notice of the proceeding, C.U. Lines Limited's counsel is already very familiar with both this proceeding and the underlying dispute, and EDI agrees that C.U. Lines Limited should be granted a reasonable time to answer, C.U. Lines Limited will not be prejudiced by the substitution of parties.

It is in the interest of judicial efficiency to ensure that this proceeding is adjudicated against the proper party. Accordingly, EDI respectfully requests that the Commission order the substitution of C.U. Lines Limited in place of CU Transport as a respondent in this matter.

In addition to substitution, EDI has filed herewith a notice of withdrawal of its motion for default against CU Transport. Since CU Transport has confirmed it was incorrectly served with the Verified Complaint, maintaining the default motion against it would serve no practical purpose.

REQUEST FOR RELIEF

WHEREFORE, for the foregoing reasons, Complainant Euromarket Designs, Inc. respectfully requests that the Commission:

1. Substitute C.U. Lines Limited in place of China United Transport, Inc. as a respondent in this proceeding;
2. Grant C.U. Lines Limited a reasonable extension of time to file a response to the Verified Complaint and pending motions, if necessary;
3. Withdraw EDI's Motion for Default Judgment against China United Transport, Inc.;
4. Grant such other relief as the Commission deems just and proper.

Dated: March 12, 2025

Respectfully submitted,

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Certificate of Service

I hereby certify that I have this day served the foregoing document upon the Respondents that have appeared thus far in this proceeding by emailing copies of that document to their counsel of record listed below:

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Dated: March 12, 2025

/s/ J. Luke Rushing
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For Complainant Euromarket Designs, Inc.